

26NWCV00826 26NWCV00826

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C08%2F17%2F2026

Source SHA-256: 2d17d2e01cbcfc69bcef4b1a9b38eb60bf20a1c71fc54f2af8500410873867be

Case Number: 26NWCV00826 Hearing Date: August 17, 2026 Dept: D

RAVON JONES V.

ALEJANDRO GOMEZ

CASE NO.: 26NWCV00826

HEARING: 08/17/2026 @

9:30 a.m.

#19

TENTATIVE ORDER

Defendant Alejandro Gomez's

unopposed motion to strike is GRANTED with 30 days LEAVE TO AMEND.

Moving party to give notice.

Defendant Alejandro Gomez

(Defendant) moves for an order striking portions of the Complaint filed by Plaintiff Ravon Jones (Plaintiff).

Background

On March 5, 2026, Plaintiff filed the operative Complaint against Defendant asserting a cause of action for Motor Vehicle Negligence.

On June 1, 2026, Defendant filed

the instant motion.

No opposition or reply has been filed.

Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at § 436, subd.(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id. at § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. at § 437.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63; College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) The statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) " 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294 subd. (c)(2).) " 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) With respect to a corporate defendant, "the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code § 3294, subd. (b).)

Analysis

Defendant moves to strike portions of Plaintiff's Complaint on the grounds that it does not contain facts that support a claim/prayer for punitive damages.

Punitive Damages

"In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294." (Turman, supra, 191 Cal.App.4th at 63.) The statutory elements for punitive damages require that a defendant is guilty of "fraud, oppression, or malice." (See Civil Code, § 3294, subd. (a).) Malice is conduct "intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294 subd. (c)(2).) "Fraud" is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294 subd. (c)(3).)

"The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166; G.D. Searle & Co. (1975) 49 Cal.App.3d 22, 29.)

Here, the Court finds that the Complaint fails to allege malice, oppression, or fraud as to Defendant to warrant an award for punitive damages. Indeed, the Complaint is devoid of any facts to support its sole cause of action for Motor Vehicle Negligence.

“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166; G.D. Searle & Co. (1975) 49 Cal.App.3d 22, 29.)

Accordingly, the Court GRANTS Defendant's motion to strike the prayer for punitive damages.

Monetary
Prayer

Defendant also moves to strike Plaintiff's prayer for damages on the grounds that Code of Civil Procedure section 425.10(b) prohibits such a monetary prayer in the Complaint where personal injury damages are sought.

Here, Plaintiff's Complaint alleges that Plaintiff endured actual damages in an amount of \$1,000,000. (Complaint p. 3.)

“[W]here an action is brought to recover actual or punitive damages for personal injury or wrongful death, the amount demanded shall not be stated, but the complaint shall comply with Section 422.30 and, in a limited civil case, with subdivision (b) of Section 70613 of the Government Code.” (Code Civ. Proc., § 425.10, subd. (d).)

Since Plaintiff states an amount in actual damages, Plaintiff's Complaint does not conform to section 425.10.

Accordingly, the Court GRANTS Defendant's motion to strike the prayer for relief.

Although Plaintiff did not file an opposition, the Court believes amendment can cure these pleadings defects, thus Plaintiff is GRANTED with LEAVE TO AMEND.

Conclusion

Based on the foregoing, Defendant

Alejandro Gomez's unopposed motion to strike is GRANTED with 30 days LEAVE TO
AMEND.